

SENATE No. 3157

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, July 13, 2026.

The committee on Municipalities and Regional Government to whom was referred the petition (accompanied by bill, Senate, No. 1433) of Julian Cyr for legislation relative to zoning for multi-family housing production, report the accompanying bill (Senate, No. 3157).

For the committee,
Rebecca L. Rausch

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**In the One Hundred and Ninety-Fourth General Court
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An Act relative to zoning for housing production.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 40A of the General Laws is hereby amended by inserting after section 3B the
2 following 2 sections:-

3 Section 3C. (a) All municipalities within the commonwealth having a population of
4 greater than 10,000 shall have a zoning ordinance or by-law that provides for no less than 1
5 district of reasonable size in which multi-family housing is permitted as of right; provided,
6 however, that such multi-family housing shall be without age restrictions and shall be suitable
7 for families with children. For the purposes of this section, a district of reasonable size shall have
8 a minimum gross density of 15 units per acre, subject to any further limitations imposed by
9 section 40 of chapter 131 and title 5 of the state environmental code established pursuant to
10 section 13 of chapter 21A.

11 (b) Municipalities may apply to the executive office for a waiver from the requirements
12 of this section. In deciding whether to grant a waiver request, the executive office shall base its

13 decision on whether the municipality's subsidized housing inventory eligible housing units
14 exceed 10 per cent of its total housing units pursuant to section 20 of chapter 40B.

15 (c) A municipality that fails to comply with this section shall not be eligible for funds
16 from: (i) the Housing Choice Initiative as described by the governor in a message to the general
17 court dated December 11, 2017; or (ii) the HousingWorks infrastructure program established in
18 section 27 of chapter 23B.

19 (d) The executive office of housing and livable communities shall promulgate regulations
20 to assess municipalities' compliance with this section.

21 Section 3D. Each municipality in the commonwealth shall enact zoning ordinances and
22 by-laws, subject to the procedure established under section 5 of this chapter, that set forth a
23 minimum lot size for real property classified as Class One, residential of no greater than 1 acre,
24 except when required to maintain compliance with section 13 of chapter 21A and environmental
25 protection regulations promulgated thereunder.